

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
SEAN WALTROUS,

Plaintiff (s)

SUMMONS

-against-

INDEX No.:

THE CITY OF NEW YORK, NYPD POLICE OFFICER
LA TAX REG.# 949188, JOHN DOE #1 -5, IN THEIR
OFFICIAL AND INDIVIDUAL CAPACITY,

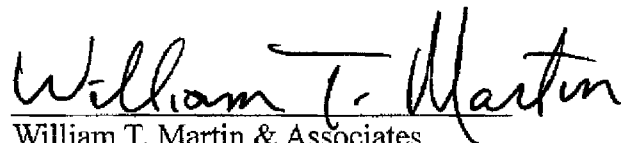
Defendants.
-----X

To the above-named Defendant (s):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Westchester, New York
May 20, 2022

Respectfully submitted,



William T. Martin & Associates
Attorney for Plaintiff SEAN WALTROUS
108 Village Sq., Ste. 143
Somers, New York 10589
(914) 960-3288

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
SEAN WALTROUS,

Plaintiff (s)

COMPLAINT

-against-

INDEX No.:

THE CITY OF NEW YORK, NYPD POLICE OFFICER
LA TAX REG.# 949188, JOHN DOE #1 -5, IN THEIR
OFFICIAL AND INDIVIDUAL CAPACITY,

JURY DEMAND

Defendants,

-----X
Plaintiff, SEAN WALTROUS by and through his attorney, WILLIAM T. MARTIN, Esq.,
complaining of the defendants herein, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. This is an action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the United States Constitution, and the laws of the State of New York.
2. Plaintiff SEAN WALTROUS is an African- American male, resident and citizen of City of New York, State of New York, and the United States of America.
3. Plaintiff is a United States citizen who was deprived of his constitutional and common law rights when defendant NYPD POLICE OFFICER LA TAX REG.# 949188 AND JOHN DOE #1 -5, ARRESTED AND ASSAULTED THE PLAINTIFF FOR NO LEGITIMATE REASON.
4. Plaintiff's claim was the subject of a 50H hearing on December 10, 2022, and the claims have not been redressed and more than 90 days have elapsed since the 50H hearing.

PARTIES

5. Plaintiff, SEAN WALTROUS (hereinafter "WALTROUS ") was a resident of the City

and State of New York when the cause of action accrued.

6. The City of New York, (hereinafter "CITY") at all times relevant herein, operated and maintained a court system within the CITY with courts located in all five boroughs, and staffed with employees who perform and performed various functions and services, to wit maintaining a probation department within the court system that it oversaw and operated.

7. At all times relevant herein, NYPD POLICE OFFICER LA TAX REG.# 949188 (hereinafter "LA") was employed by the New York City Police Department and apropos to the averments in the complaint was acting within the scope of his employment.

8. At all times relevant herein, NYPD OFFICERS JOHN DOE # 1 -- 5 were employed by the New York City Police Department and apropos to the averments in the complaint were acting within the scope of their employment.

JURISDICTION

9. The incidents complained of in the instant complaint all occurred within the confines of the CITY of New York, to wit Staten Island.

STATEMENT OF FACTS

10. On or about May 18, 2022, at approximately 6:00 p.m. in the vicinity of the northeast corner of 42 St. and First Avenue, in Manhattan in the NYPD 17th Pct.

13. At or about the above time and date in the vicinity of 42 St. and First Avenue, in Manhattan near the Israeli consulate WALTROUS as well as hundreds of other individuals had gathered in or near the consulate to peacefully protest the protracted Israel-Palestinian conflict.

14. Upon information and belief, the rally involved protestors waving Pro-Palestinian flags and Pro-Israeli opposition met in the street outside the consulate at 802 2nd Ave causing major traffic jams. The rally and demonstrations generated tremendous news coverage in every known

medium of communication, to wit, press, television, cable, and social media.

15. Upon information and belief, reporters, journalist, photographers, television news coverage, which was local, national, and international in terms of the viewers of a major new event. Mass media was present to record and document the events, in real time,

16. WALTROUS is a photographer of some renown. Upon information and belief WALTROUS is an independent photographer and on the date of the demonstration he was actively taking pictures and wearing a "Press Pass" to indicate to any and all that he was at the protest to exercise his rights as a member of the "press" to take a pictorial account of the events taking photographs of all the persons present, including but not limited to the protestors and the police...chronicling their encounters.

17. At all times material to the averments in the complaint WALTROUS had a "Press Pass" around his neck, and was apart from and away from the protestors, and the police, in order to maintain lines of sight which would better enable him to capture photos of crucial interactions.

18. In order to take those shots/pictures WALTROUS had to go into the street to take pictures of the protestors walking on the sidewalks, and in the street. In addition to an apparently expensive camera and a press pass WALTROUS was clearly taking pictures, with others who were similarly adorned with a "Press Pass" and expensive cameras actively following and taking pictures of the day's events, in the accompaniment of other photographers, some of whom happened to be white.

19. WALTROUS had been taking pictures of the protest from various locations as the demonstration wend its way to and about the consulate and the interactions between protestors with differing views and their collective interactions with members of the NYPD who were there in large number and supervised by superior officers.

20. At or about this time (6:00 p.m.) the crowds had swelled and had become too large to be accommodated on the sidewalk. Therefore, many people who were on the sidewalk, at some point found themselves walking alongside the demonstrators who were on the sidewalk because of crowd size.

21. Upon information and belief, it was apparent to any onlooker that WALTROUS was a photographer, and not a demonstrator, simply by virtue of his visible accoutrements (Press Pass, expensive camera, camera equipment).

22. Upon information and belief, there came a time while WALTROUS was taking pictures that he was pushed and shoved aggressively, initially from the rear, by NYPD Officer JD #1 – 5, in an effort to force him on to the sidewalk with the demonstrators.

23. After this illegal stop, by defendant NYPD Officer JD #1 – 5, who proceeded to roughly grab and pull him back and around and while he tried to protect his camera which he held in his hands when he was snatched from the rear in an effort to safeguard his camera, he found himself abruptly turning and being turned in an awkward direction/position.

24. After the illegal stop by defendant NYPD Officer JD #1 – 5 he was dragged/pushed toward a police van where they put zip ties around his wrist and made him standby the van for approximately 20 mins, before he was placed in a transport vehicle, which was particularly uncomfortable due to plaintiff's size.

25. Upon information and belief, defendants NYPD Officer JD #1 – 5, and La proceeded to talk amongst themselves to agree on which charges to bring against WALTROUS and other detainees who they had arrested. WALTROUS was in the transport vehicle, for a considerable amount of time, which did not move from the scene of the arrest until after the charging discussion the defendants had amongst themselves and the decision to designate defendant LA as the arresting

officer.

26. Upon information and belief, the zip ties had caused his hands and wrist to sustain injuries. After the transport vehicle left the site of the arrest, and a short ride it proceeded to the precinct where he was removed from the vehicle and brought inside precinct.

27. Once WALTROUS was inside the precinct the zip ties were removed and replaced with handcuffs. After being detained for nearly three hours, he was released with a Summons # 4441418972 to appear in court on 7/16/21.

28. Upon information and belief, after WALTROUS was released from police custody he sought and received medical attention for the injuries he sustained at the time of his arrest, to his right elbow, wrist and hand which occurred at the time of his arrest by defendants NYPD Officer JD #1 – 5.

29. That on or about July 13, 2021, WALTROUS was notified by the Criminal Court of the City of New York, County of New York that the Summons # 4441418972 which had been issued to him that “the NYPD has failed to file a legally acceptable accusatory instrument with this court. There is no need for you to return to court on the summons number referenced above.”

30. That on or about August 12, 2021, the defendants were served with a Notice of Claim regarding the above noted events. On or December 10, 2021 a 50h hearing was held. Now more than 90 days have elapsed since the 50h hearing and the defendants have made no effort to compromise this claim.

FIRST CAUSE OF ACTION
FALSE ARREST

31. Plaintiff WALTROUS repeats, reiterates and re-allege each and every allegation contained in paragraphs marked "1 " through "30" with the same force and effect as if more fully set forth at length herein.

32. That at all times material to the averments in the complaint, WALTROUS was lawfully upon the highways and byways of the thoroughfare of defendant CITY; lawfully exercising his rights to free speech; and press, journalistic, photographic recording of an international event which many other journalist, photographers, and television media who were also recording the days events.

33. That WALTROUS was arrested and charged with “*walking on the roadway w/ available sidewalk in violation of §1156A of the VTL*, a violation (faced up to 15 days in jail). The section reads, in pertinent part: **“Pedestrians on roadways. (a) Where sidewalks are provided, and they may be used with safety it shall be unlawful for any pedestrian to walk along and upon an adjacent roadway.”**

34. That the defendants knew that their actions and conduct, with regard to the interactions with the protestors was noteworthy, newsworthy, and cringe worthy. It became apparent early on that the crowds were large and transitory moving towards the consulate and in the vicinity of the consulate there was a bottleneck of protestors and law enforcement interactions were becoming heated.

35. It was obvious that the defendants were overwhelmed, and their response was to make up false charges, in order to arrest the protesters who were lawfully exercising their constitutional rights to peacefully protest in large numbers.

36. To arrest a citizen, the government must have probable cause. And probable cause is defined as “reasonable cause to believe a crime has been committed and that the defendant committed it.” In addition to probable cause there must be an articulable event which is determined to be criminal and thereafter an accusatory instrument is prepared which informs the accused of the legal charges against them. The accusatory instrument, in a legitimate arrest, is then filed in the court

of apparent jurisdiction...which in this case was the NYC Criminal court.

37. Upon information and belief, in order to establish a claim for false arrest a person must establish that (1) the police officers intended to arrest them; (2) the person was conscious of the arrest; (3) they did not consent to the arrest and (4) that the arrest was not otherwise privileged.

38. The defendants "failed to file a legally acceptable accusatory instrument with the court because they did not want to risk criminal exposure for the filing of false charges. Based on the averments set forth in the complaint the defendants falsely arrested WALTROUS, and all charges against him were a legal nullity.

39. That by reason of the forgoing, plaintiff WALTROUS suffered serious economic and emotional injuries all to his damage in the sum of One Million Dollars (\$1,000,000.00) against each defendant.

SECOND CAUSE OF ACTION **FALSE IMPRISONMENT**

40. Plaintiff WALTROUS repeats, reiterates and re-allege each and every allegation contained in paragraphs marked "1 " through "39" with the same force and effect as if more fully set forth at length herein.

41. After the illegal stop by defendant NYPD Officer JD #1 – 5 he was dragged/pushed toward a police van where they put zip ties around his wrist and made him standby the van for approximately 20 mins, before he was placed in a transport vehicle, which was particularly uncomfortable due to plaintiff's size.

42. Upon information and belief, defendants NYPD Officer JD #1 – 5, and La proceeded to talk amongst themselves to agree on which charges to bring against WALTROUS and other detainees who they had arrested. WALTROUS was in the transport vehicle, for a considerable amount of time, which did not move from the scene of the arrest until after the charging discussion

the defendants had amongst themselves and the decision to designate defendant LA as the arresting officer.

43. Upon information and belief, the zip ties had caused his hands and wrist to sustain injuries. After the transport vehicle left the site of the arrest, and a short ride it proceeded to the precinct where he was removed from the vehicle and brought inside precinct.

44. Once WALTROUS was inside the precinct the zip ties were removed and replaced with handcuffs. After being detained for nearly three hours, he was released with a Summons # 4441418972 to appear in court on 7/16/21.

45. Upon information and belief, after WALTROUS was released from police custody he sought and received medical attention for the injuries he sustained at the time of his arrest, to his right elbow, wrist and hand which occurred at the time of his arrest by defendants NYPD Officer JD #1 – 5.

46. In order to have a case for unlawful imprisonment, it must be proved that: 1) The accused individual was intending to confine the plaintiff; 2) The plaintiff was aware that he or she was being confined; 3) The plaintiff did not consent to the confinement and 4) The confinement was not otherwise privileged.

47. Upon information and belief, WALTROUS was arrested by defendants NYPD Officer JD #1 – 5 and P.O. LA who fully intended to confine WALTROUS; WALTROUS was aware that he was confined and the injuries he sustained, confirmed the fact that he was confined, and we can conclude that he did not consent to the confinement due to the injuries he sustained.

48. That by reason of the forgoing, plaintiff WALTROUS suffered serious economic and emotional injuries all to his damage in the sum of One Million Dollars (\$1,000,000.00) against each defendant.

THIRD CAUSE OF ACTION
MALICIOUS PROSECUTION

49. Plaintiff WALTROUS repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1 " through "48" with the same force and effect as if more fully set forth at length herein.

50. That the individual defendants LA, and NYPD POLICE OFFICERS JOHN DOE # 1 - 5. brought charges against plaintiff WALTROUS that were false, which they knew or should have to be false through the exercise of due diligence, and a thorough investigation consistent with their duties.

51. That plaintiff WALTROUS's prosecution and the threat of incarceration on the false allegations, was the direct result of the actions of the individual defendants; which they knew or should have known were false; and based on the false statements of "individual" defendants LA, and NYPD POLICE OFFICERS JOHN DOE # 1 - 5.

52. That the charges and prosecution of plaintiff WALTROUS was reckless, wanton, and malicious without any regard to the truth of the allegations, and/or the defendants' conduct was in clear derogation of the plaintiff's rights.

53. The defendants knew that their charges were false, that WALTROUS was being framed and it was clear that he was incapable of being arrested for the charges they had fostered.

54. That by reason of the forgoing, plaintiff WALTROUS suffered serious economic and emotional injuries all to his damage in the sum of One Million Dollars (\$1,000,000.00) each.

FOURTH CAUSE OF ACTION
INFLICTION OF EMOTIONAL DISTRESS

55. Plaintiff WALTROUS repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1 " through "54" with the same force and effect as if more fully set

forth at length herein.

56. That the defendants knew or should have known that they were filing false charges which were designed to inflict severe emotional distress and psychological damages to the plaintiff who was aware of his innocence.

57. That the acts of the defendants caused emotional damage and suffering, anxiety, nervousness, insomnia, and public humiliation.

58. That the defendants knew or should have that their actions were likely to cause upsetment and depression, and countless hours of anguish which the arrest on false charges was likely to cause emotional damage and injury to the plaintiff.

59. That the plaintiff, who was a victim of a crime (police brutality), was battered, humiliated and his report of the incident was disregarded, for no apparent reason, and he was arrested on allegations which were clearly false.

60. The arrest on these trumped charges: resulted in mental anguish, incarceration for several hours, and thought of prosecution, which in and of itself signaled an arduous emotional journey from the night of the arrest until the charges were dismissed by the New York City Criminal Court.

61. That by reason of the forgoing, plaintiff WALTROUS suffered serious economic and emotional injuries all to his damage in the sum of One Million Dollars (\$1,000,000.00) each.

FIFTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

62. Plaintiff WALTROUS repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1 " through "61" with the same force and effect as if more fully set forth at length herein.

63. That the defendants LA, and NYPD POLICE OFFICERS JOHN DOE # 1 - 5, defendants CITY and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the defendants LA, and NYPD POLICE OFFICERS JOHN DOE # 1 – 5, who were unfit for the performance of police duties on May 18, 2021, who also prepared and filed false accusatory documents to cover their illegal conduct at the above-mentioned location.

64. The failure of the defendant CITY to hire, retain, train, supervise, discipline, discharge or in any other way adequately control the behavior of defendants LA, and NYPD POLICE OFFICERS JOHN DOE # 1 – 5, in the exercise of their police functions, and their failure to enforce the laws of the State of New York and the regulations of N.Y.P.D is evidence of the reckless disregard for the rights of the public, including plaintiff, and exhibited a lack of guidance and direction which prudent and reasonable individuals would display in employing persons to work for the N.Y.P.D.

65. Further defendant CITY countenances, condones, ratifies the continued employment of the defendants LA, and NYPD POLICE OFFICERS JOHN DOE # 1 – 5, even though they are/were made aware of the ultra-various acts of said defendant police officers (dismissal of charges) and such forbearance, without consequences, fosters an atmosphere of lawlessness and implicit acceptance of falsifying accounts of criminality against the citizenry with impunity.

66. Such conduct has flourished and allowed to the exist and has created a culture of lawlessness that is carried out willfully, wantonly, maliciously and with reckless disregard for the rights of minorities in general and plaintiff WALTROUS's constitutional rights, specifically.

67. That by reason of the forgoing, plaintiff suffered economic and emotional injuries all to his damage in the sum of One Million Dollars (\$1,000,000.00).

**SIXTH CAUSE OF ACTION
AGAINST THE CITY OF NEW YORK**

68. Plaintiff WALTROUS repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1 " through "67" with the same force and effect as if more fully set forth at length herein.

69. That as an employer of the defendants LA, and NYPD POLICE OFFICERS JOHN DOE # 1 – 5, at the times of their intentional conduct, as set forth herein, the defendant CITY is liable to the plaintiff WALTROUS under the laws of the defendant CITY and State of New York, for allowing said individual defendants to, while under color of law, deny the plaintiff due process and equal protection of the law, while active members of the NYPD, who arbitrarily and capriciously disregarded the allegations of a plaintiff/victim and failed to properly and thoroughly investigate the plaintiffs allegations against his assailants.

70. Moreover, that as a direct and proximate cause/result of the aforesaid acts and omissions by the defendants LA, and NYPD POLICE OFFICERS JOHN DOE # 1 – 5, the plaintiff WALTROUS has been made to suffer general, pecuniary and compensatory damages.

71. That the CITY was informed by the New York County Criminal court that the false charges were dismissed and the CITY still retained the individuals in their employ and by reason of the forgoing, plaintiff WALTROUS suffered serious economical and emotional injuries all to his damage in the sum of One Million Dollars (\$ 1 000,000.00) each.

WHEREFORE, Plaintiff WALTROUS request judgment against the individual defendants LA, and NYPD POLICE OFFICERS JOHN DOE # 1 – 5, and defendant CITY, as follows:

1. As against the individual defendants LA, and NYPD POLICE OFFICERS JOHN DOE # 1 – 5, jointly and severally; General and Compensatory damages in the sum of TWO MILLION DOLLARS (\$2,000,000.00) on the individual causes of action 1 through 5, herein,

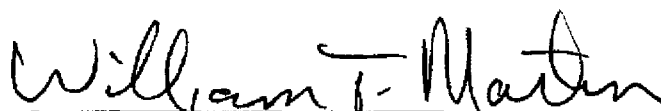
2. As against the individual Defendants the defendants the defendants the defendants the defendants LA, and NYPD POLICE OFFICERS JOHN DOE # 1 – 5 jointly and severally punitive damages in the sum of TWO MILLION DOLLARS (\$2,000,000.00) on the causes of action 1 through 5, herein, and;

3. As against Defendant CITY OF NEW YORK, General and Compensatory damages in the sum. Of TWO MILLION DOLLARS (\$2,000,000.00) on the Sixth Cause of action asserted against it, and

4. Cost of this action,

5. And such other and further relief as may deem to be just and proper.

Dated: Westchester, New York
May 20, 2022

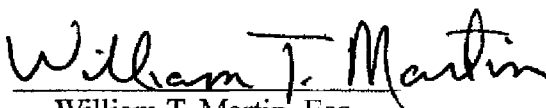

William T. Martin, Esq.
108 Village Sq., Ste. 143
Somers, N.Y. 10589
(914) 960-3288

VERIFICATION**STATE OF NEW YORK :****: ss.:****COUNTY OF WESTCHESTER :**

I, William T. Martin, Esq. being an attorney do hereby affirm and state under the penalties of perjury that:

I am verifying the contents of the instant Complaint because my client does not reside in the county where I maintain my offices.

I have read the foregoing complaint and know the contents to be true. The averments therein are true to the best of my knowledge, except as to the matters therein stated to be alleged on information and belief and as to those matters, I believe them to be true.


William T. Martin, Esq.